

The Technology Development Board (Sub-Mission of Returns) Regulations, 2004

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Union of India - Act

The Technology Development Board (Sub-Mission of Returns) Regulations, 2004

UNION OF INDIA

India

The Technology Development Board (Sub-Mission of Returns) Regulations, 2004

Rule THE-TECHNOLOGY-DEVELOPMENT-BOARD-SUB-MISSION-OF-RETURNS-REGULATIONS-2004 of 2004

Published on 10 March 2004

Commenced on 10 March 2004

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[Note: The original publication document is not available and this content could not be verified.]

The Technology Development Board (Sub-Mission of Returns) Regulations, 2004

Published vide Notification in the Gazette of India, Extra, Part 2, Section 3(i) dated 10th March, 2004
1737.

G.S.R. 179 (E)-dated 10th March, 2004. - In exercise of the powers conferred by sub-section (1), read with clause (c) of sub-section (2) of Section 22 and Section 15 of the Technology Development Board Act, 1995 (44 of 1995

) and in supersession of the Technology Development Board (Submission of Returns) Regulations, 1998, the Technology Development Board, with the previous approval of the Central Government, hereby makes the following regulations, namely :-

1.

(1)

These regulations may be called the Technology Development Board (sub-mission of Returns) Regulations, 2004.

(2)

They shall come into force on the date of their publication in the official Gazette.

2.

Definitions.

- In these regulations, unless the context otherwise requires -

(a)

"Act" means the Technology Development Board Act, 1995 (44 of 1995

);

(b)

"agreement" means a contract duly executed between the Board and an industrial concern for providing financial assistance to such concern by the Board.

(c)

"Board" means the Technology Development Board constituted under sub-section (1) of Section 3 of the Act;

(d)

"industrial concern" has the meaning assigned to it in clause (c) of section 2 of the Industrial Development Bank of India Act, 1994 (18 of 1964), and includes any other person in whose favour a foreign collaboration involving the import of technology is approved or automatically approved in accordance with the industrial policy of the Government of India in force from time to time.

3.

Submission of returns.

(1)

An industrial concern receiving financial assistance from the Board shall, during the currency of the agreement with the Board, furnish returns to the Board in the form as specified in the schedule annexed to these regulations.

(2)

Every industrial concern receiving financial assistance from the Board shall furnish the return to the Board every six months from the date of first disbursement of assistance.

(3)

Every return to be filed under these regulations shall be sent to the Board within a period of five days from the date of completion of the preceding six months period.

Schedule

[See Regulation 3(1)]

Returns For Submission By An Industrial Concern Receiving Financial Assistance From The Technology Development Board

1. Technology Development Board's File Reference No.

2. Name of the industrial concern and address :

3. project title :

4.

Date of signing the agreement (loan/Equity) :

5.

Date (s) of signing supplementary agreements (s), if any :

6.

Quantum of assistance by TDB :

Instalment

Date of drawal

Amount

(as per agreement)

7.

Last date for drawal of assistance from the Technology Development Board as per the agreement.

8.

project cost (Rupees in lakhs) as per the break-up indicated in the agreement (as modified by supplementary, if any) and expenditure incurred so far (to be supported by certificate by the Chartered Accountant) along with reasons for wide variations, if any.

Items

As

per agreement

Actual

as on

Reasons

for variations

9.

Means of finance (Rupees in lakhs) as per the break-up indicated in the agreement (as modified by supplementary, if any) and finance raised so far to be supported by the Chartered Accountant) along with reasons for wide variations, if

Description

As

per agreement

Actual

as on

Reason

for variations

indicate the names and addresses of lenders with amount.

10.

(a) Date of completion of the projects as per the agreement As modified by supplementary, if any)

(b)

Expected date of completion/reasons for delayed completion.

11.

Progress of work with reference to the provisions of the agreement (as modified by supplementary agreement, if any) including milestones and bar chart, in respect of each head as indicated in the project cost.

12.

Furnish a copy of recorded minutes of the last meeting held between the technology provider and the industrial concern (if applicable).

13.

Give the names and designations of the senior most personnel for scientific, technical, marketing and finance functions.

14.

(a) Is the in-house R&D unit recognized ?

(b)

if so, furnish details.

15.

Enclose a list of Plant and machinery procured for the project along with the quantity and cost. (This should generally tally with the agreement and in case of deviations, these should be explained).

16.

Is there any deviation in the installed capacity of the plant and/or product profile from the one envisaged at the time of signing the agreement ?

17.

Status of insurance of property to be hypothecated to Technology Development Board.

18.

Latest statement of No Lien Account (with Account Number of the Banker's letter.)

19.

Name and address of the Chartered Accountant auditing the accounts.

The following are to be answered after completion of project.

20.

Status of compliance of statutory requirements covered under the agreement.

21.

(a) Has the industrial concern adhered to the payment schedule to financial institutions and/or commercial banks ?

(b)

Indicate default, if any.

22.

(a) Has the industrial concern adhered to the payment schedule to the Technology Development Board ?

(b)

Indicate default, if any.

23.

Has there been any change in the management and share holding pattern since the last return ?

24.

Furnish a copy of the audited accounts for the previous year along with Annual Report if not already furnished).

25.

Provisional financial results for the current year for Q1, Q2, Q3, & Q4 as applicable).

26.

Any other information which the beneficiary desires to present.

Place.....

Date.....

Signature of the authorised person and seal.

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